

Tentative Rulings for August 26, 2026 Department 2

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 143 8184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2602223	PRICKETT vs PETERSON	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

Before filing a motion to strike, the moving party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading, for the purpose of determining whether an agreement can be reached to resolve the objections. (CCP § 435.5(a).) Here, RBT's supporting declaration reflects only written correspondence—a June 4, 2026, letter raising the punitive damages demand (Knierim Decl. ¶ 3), a June 12, 2026, follow-up letter enclosing a proposed stipulation as to punitive damages (¶ 4), and a June 19, 2026, email attaching a draft motion and updated draft stipulation (¶ 5). There is no indication that the parties met and conferred in person, by telephone, or by videoconference as required by statute. Moreover, while this correspondence addressed punitive damages, there was no meet and confer effort of any kind directed to emotional distress damages. On this record, RBT did not satisfy its meet and confer requirement under section 435.5(a). Thus, the Court orders the hearing continued and order the parties to further meet and confer. The Court will meet and confer with the parties on August 26, 2026 to identify the next hearing date.